

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                    |                                                                     |                                     |                                                       |                                               |                                 |
|------------------------------------------------------------------------------------|---------------------------------------------------------------------|-------------------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Casey Kirton                                                      | Team:<br>Squad #06                                                  | CCRB Case #:<br>201604301           | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                                    |                                                                     |                                     | <input type="checkbox"/> Abuse                        | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 05/10/2016 12:00 AM,<br>Wednesday, 05/11/2016 1:30 AM | Location of Incident:<br>East 40th Street and 1st Avenue            | 18 Mo. SOL<br>11/11/2017            | Precinct:<br>17                                       |                                               |                                 |
| Date/Time CV Reported<br>Wed, 05/18/2016 1:26 PM                                   | CV Reported At:<br>CCRB                                             | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Wed, 05/18/2016 1:26 PM |                                               |                                 |
| <b>Complainant/Victim</b>                                                          | <b>Type</b>                                                         | <b>Home Address</b>                 |                                                       |                                               |                                 |
|                                                                                    |                                                                     |                                     |                                                       |                                               |                                 |
| <b>Subject Officer(s)</b>                                                          | <b>Shield</b>                                                       | <b>TaxID</b>                        | <b>Command</b>                                        |                                               |                                 |
| 1. POM Michael Gragnano                                                            | 13320                                                               | 949050                              | 017 PCT                                               |                                               |                                 |
| <b>Witness Officer(s)</b>                                                          | <b>Shield No</b>                                                    | <b>Tax No</b>                       | <b>Cmd Name</b>                                       |                                               |                                 |
| 1. POF Brittany Postiglione                                                        | 19044                                                               | 959088                              | 017 PCT                                               |                                               |                                 |
| <b>Officer(s)</b>                                                                  | <b>Allegation</b>                                                   | <b>Investigator Recommendation</b>  |                                                       |                                               |                                 |
| A . POM Michael Gragnano                                                           | Discourtesy: PO Michael Gragnano spoke discourteously to § 87(2)(b) | A . Unsubstantiated                 |                                                       |                                               |                                 |

### Case Summary

On May 18, 2016, § 87(2)(b) filed this complaint online with the CCRB, generating online complaint #1-1252102780 (BR01).

On May 11, 2016 at approximately 1:20 a.m., § 87(2)(b) was at East 40<sup>th</sup> Street and 1<sup>st</sup> Avenue in Manhattan was pulled over for tinted windows. The vehicle in which § 87(2)(b) was driving belonged to his brother. § 87(2)(b) produced his license, but when he could not produce the registration for the vehicle, he was placed under arrest. The officers radioed for a transport vehicle and two uniformed officers, identified as PO Michael Gragano and PO Brittany Postiglione of the 17<sup>th</sup> Precinct, arrived. § 87(2)(b) was placed in the transport vehicle and once inside, requested that his handcuffs be loosened because they were too tight. PO Gragano informed § 87(2)(b) that his handcuffs would be loosened at the stationhouse. Once at the stationhouse, § 87(2)(b) again requested that his handcuffs be loosened, in which PO Gragano responded, “Stop bitching and keep walking” (**Allegation A**). § 87(2)(b) was then escorted into the 17<sup>th</sup> Precinct stationhouse and his handcuffs were loosened by PO Gragano. § 87(2)(b) was issued a summons for less than 70% light transmittance for the driver’s side front door window tint (BR02).

§ 87(2)(g)

### Mediation, Civil and Criminal Histories

- § 87(2)(b) declined mediation § 87(2)(b)
- § 87(2)(b) has not filed a Notice of Claim regarding the incident with the NYC Comptroller’s office as of July 22, 2016 (BR03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- § 87(2)(b) has filed three previous CCRB complaints in the past two years.
  - § 87(2)(b)
- 
- 
- PO Gragano has been a member of the NYPD for six years. This is his first CCRB allegation.

### Findings and Recommendations

#### Allegations not pleaded

- § 87(2)(g)

§ 87(2)(g)

### Recommendations

#### **Allegation A –Discourtesy: PO Michael Gragano spoke discourteously to § 87(2)(b)**

It is undisputed that § 87(2)(b) was transported and escorted into the 17<sup>th</sup> Precinct stationhouse by PO Gragano and PO Postiglione. Furthermore it is undisputed that § 87(2)(b) complained to PO Gragano and PO Postiglione about his handcuffs being too tight. § 87(2)(g)

§ 87(2)(b) (BR05; BR06) testified that before stepping into the transport vehicle, he complained to PO Gragano that his handcuffs were too tight and received no response from PO Gragano. Once in the transport vehicle, § 87(2)(b) again expressed his discomfort about the tightness of his handcuffs and was told to relax by PO Gragano. When they arrived to the 17<sup>th</sup> Precinct stationhouse and § 87(2)(b) exited the transport vehicle, he told PO Gragano and PO Postiglione that they should loosen the handcuff. It was at this time that PO Gragano allegedly responded “You know what? Just stop bitching and keep walking.” After they entered the stationhouse, PO Gragano removed § 87(2)(b)'s handcuffs and placed him in a cell.

PO Gragano (BR07) testified to the following: When he arrived to the scene with PO Postiglione, he observed Sgt. Singh and his partner, PO Seidler waiting outside their police vehicle with § 87(2)(b). PO Gragano and PO Postiglione exited their vehicle and Sgt. Singh told him that he needed someone to transport § 87(2)(b) to the 17<sup>th</sup> Precinct stationhouse. PO Gragano observed § 87(2)(b)'s heavy, “huffy” breathing. § 87(2)(b) was then placed in the transport vehicle. During transport, § 87(2)(b) complained that handcuffs were too tight and stated that “this is bullshit.” PO Gragano told § 87(2)(b) that he would not be able to take off his handcuffs until they reached the stationhouse. PO Gragano did not hear any more grievances from § 87(2)(b). When they arrived at the 17<sup>th</sup> Precinct stationhouse, PO Gragano loosened § 87(2)(b)'s handcuffs a little while filling out his pedigree information, then placed him in a cell and removed his handcuffs. PO Gragano denied telling § 87(2)(b) to “Just stop bitching and keep walking” while he escorted him into the stationhouse.

PO Postiglione (BR09) corroborated that during the transport to the stationhouse § 87(2)(b) was agitated and displayed hostile behavior. § 87(2)(b) yelled about the tightness of his handcuffs and stated, “This is bullshit.” However, after being told that the handcuffs would be loosened once at the stationhouse, § 87(2)(b) stopped yelling. PO Postiglione denied that PO Gragano told § 87(2)(b) “Just stop bitching and keep walking.”

§ 87(2)(g)

§ 87(2)(b), it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Squad:

|               |           |       |       |
|---------------|-----------|-------|-------|
| Investigator: | _____     | _____ | _____ |
|               | Signature | Print | Date  |

|               |                 |       |       |
|---------------|-----------------|-------|-------|
| Squad Leader: | _____           | _____ | _____ |
|               | Title/Signature | Print | Date  |

|           |                 |       |       |
|-----------|-----------------|-------|-------|
| Reviewer: | _____           | _____ | _____ |
|           | Title/Signature | Print | Date  |